

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON
PORTLAND DIVISION**

ASHLE' ANTOINETTE PENN,

Plaintiff,

Case

No.:

v.

WASHINGTON COUNTY, a municipal
corporation; DEPUTY CASEY RAM-
BIN,

CIVIL RIGHTS COMPLAINT

individually and in his official capac-
ity;

42 U.S.C. §§ 1983, 1985(3), 1986

JUDGE BRANDON THOMPSON,
individually and in his personal capac-
ity;

JURY TRIAL DEMANDED

DDA WILLIAM STABLER (OSB
#124624),

individually; DAVID MILNE,

PROTECTIVE FILING PUR-
SUANT

individually and in his official capac-
ity;

TO *Wallace v. Kato*,

SONYA FAULKNER, individually
and in her official capacity;

549 U.S. 384 (2007)

SHEILA CLARK, individually;

MOLLY McBRIDE, individually;

OREGON DEPARTMENT OF HUMAN
SERVICES, CHILD WELFARE;

and JOHN/JANE DOES 1-10,

Defendants.

PRELIMINARY STATEMENT AND NOTICE OF PROTECTIVE FILING

Plaintiff AshLe’ Antoinette Penn brings this action pursuant to 42 U.S.C. §§ 1983, 1985(3), and 1986 for systematic violations of her rights under the First, Fourth, Sixth, and Fourteenth Amendments to the United States Constitution, and for a civil conspiracy by state actors to deprive her of those rights on account of her race.

Notice of Protective Filing. The Fourth Amendment false arrest claim accrued no later than September 19, 2024, when Plaintiff appeared before a magistrate and became detained pursuant to legal process. *Wallace v. Kato*, 549 U.S. 384, 397 (2007). Oregon’s two-year personal injury statute of limitations, ORS 12.110(1), applies to Section 1983 claims. This complaint is filed as a protective filing to preserve all claims before the statutory deadline of approximately September 19, 2026. Plaintiff simultaneously moves to stay the damages claims arising from the pending criminal proceedings in Washington County Circuit Court Case Nos. 24CR49043 and 24CR27775 pending final resolution of those proceedings, while proceeding immediately on claims independent of the pending prosecutions.

1. JURISDICTION AND VENUE

1. This Court has subject matter jurisdiction pursuant to 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3)–(4) (civil rights).
2. Venue is proper in the District of Oregon, Portland Division, pursuant to 28 U.S.C. § 1391(b), because all events giving rise to this action occurred in Washington County, Oregon.
3. This Court has supplemental jurisdiction over any state law claims pursuant to 28 U.S.C. § 1367.

2. PARTIES

4. **Plaintiff AshLe’ Antoinette Penn** is a Black woman and resident of Washington County, Oregon. She is the natural mother of Almira Davis (born June 23, 2011) and is a defendant in Washington County Circuit Court Case Nos. 24CR49043 and 24CR27775.
5. **Defendant Washington County** is a municipal corporation organized under the laws of the State of Oregon, and is the employer of the individual law enforcement and prosecutorial defendants named herein. Washington County is sued under the theory of municipal liability established in *Monell v. Department of Social Services*, 436 U.S. 658 (1978).
6. **Defendant Deputy Casey Rambin** is and was at all relevant times a deputy with the Washington County Sheriff’s Office (WCSO). He is sued individually and in his official capacity for conduct undertaken under color of state law.

7. **Defendant Judge Brandon Thompson** is a circuit court judge of the Washington County Circuit Court. He is sued in his personal capacity for acts taken outside the scope of judicial authority or in clear absence of jurisdiction, including communications with the pretrial release office in an ex parte administrative capacity that initiated adverse proceedings against a defendant in a case pending before him. *Stump v. Sparkman*, 435 U.S. 349, 356-57 (1978) (judicial immunity does not extend to acts taken in clear absence of jurisdiction or administrative rather than judicial capacity).
8. **Defendant DDA William Stabler** (OSB #124624) is and was at all relevant times a Deputy District Attorney for Washington County. He is sued individually for prosecutorial conduct that exceeded the scope of prosecutorial function protected by absolute immunity.
9. **Defendant David Milne** is and was at all relevant times an Oregon Department of Human Services (ODHS) Child Welfare caseworker assigned to the matter of Almira Davis. He is sued individually and in his official capacity.
10. **Defendant Sonya Faulkner** is and was at all relevant times an ODHS Child Welfare supervisor. She is sued individually and in her official capacity.
11. **Defendant Sheila Clark** is and was at all relevant times a Washington County Probation and Parole supervisor. She is sued individually for her role in the warrant chain described herein.
12. **Defendant Molly McBride** is and was at all relevant times a Washington County Probation and Parole officer. She is sued individually for her role

in the warrant chain described herein.

13. **Defendant Oregon Department of Human Services, Child Welfare** is an agency of the State of Oregon that receives federal financial assistance under Title IV-E and Title IV-B of the Social Security Act and is subject to suit under 42 U.S.C. § 1983 for policies and customs that violate constitutional rights.
14. **Defendants John/Jane Does 1-10** are currently unidentified individuals including the Washington County Circuit Court clerk(s) who altered Plaintiff's contact information in the court's electronic case management system on or about December 30, 2025; the clerk(s) who discarded Plaintiff's properly tendered filing in case 25JU04261 without creating a filing record; and other individuals whose identities will be determined through discovery.

3. FACTUAL ALLEGATIONS

3.1. Background: Plaintiff's Race and the Documented Pattern of Racial Disparity

15. Plaintiff AshLe' Penn is a Black woman. She is a single parent. She has no prior criminal convictions. She holds a Certification in Suicide Prevention. She has no history of child abuse or neglect findings by any agency.
16. Oregon's Criminal Justice Commission has documented that the prison admission rate for African Americans in Oregon is **480% higher** than the statewide rate, and the incarceration rate for African Americans is **470% higher** than the statewide rate. *Oregon CJC Racial and Ethnic Impact*

Statement Background Document (official state publication).

17. Current data shows Black people in Oregon are incarcerated at a rate **5.4 times higher** than white people, while constituting approximately two percent of the state population. Prison Policy Initiative, *Oregon Profile* (2024).
18. Oregon’s Department of Human Services operated the “Safety at Screening Tool,” an algorithm based on the Allegheny Family Screening Tool, that documented research showed would recommend investigation of approximately two-thirds of Black children, compared to approximately half of all other children. Oregon DHS discontinued the tool in June 2021 after the disparity was reported by the Associated Press and raised by United States Senator Ron Wyden. *See Oregon DHS Deputy Director Email to Staff, May 19, 2021* (obtained by Willamette Week).
19. Plaintiff’s children were first removed by ODHS in 2020, during the period in which the Safety at Screening Tool was actively in use by Oregon DHS hotline workers.
20. In April 2026, the current Secretary of Health and Human Services – the federal official who oversees the Title IV-E and Title IV-B funding that Oregon DHS receives – was confronted in Congress with a 2024 recorded statement in which he stated that “every Black kid is now just standardly put on Adderall, SSRIs, benzos” and that “those kids are going to have a chance to go somewhere and get reparented.” *House Ways and Means Committee Hearing, Apr. 16, 2026* (Rep. Terri Sewell, D-Ala., reading quote into *Congressional Record*).
21. Representative Sewell stated on the Congressional record: “For Black fam-

ilies in the United States, the issue of family separation is not new. Our nation has a long and painful history of separating Black children from their families. During slavery, Black children were taken from their parents and sold with no regard for their humanity. After slavery, Black families continued to face forced separations through Jim Crow laws, discriminatory policing and child welfare systems that too often assumed that Black parents were unfit. Even today, Black children are removed from their homes at higher rates than white children.” *Id.*

3.2. The Unlawful Arrest of September 17-19, 2024

22. On or about September 17, 2024, Washington County Sheriff’s deputies executed what was represented to be an arrest arising from an incident at a Target retail store.
23. Deputy Rambin authored the probable cause affidavit supporting Plaintiff’s arrest. That affidavit identified Plaintiff as the person involved in the Target incident based on witness identification.
24. Rambin’s own supplemental report, dated December 27, 2024, conceded possible misidentification and directed post-arrest evidence gathering to confirm or deny identity after the arrest had already been made. This supplemental report was authored by Rambin after the arrest and constitutes a sworn concession that the probable cause affidavit he submitted was based on unverified identification.
25. The original complaining witness, Sara Fillis, provided a statement materially inconsistent with Rambin’s probable cause affidavit. Specifically,

Fillis's statement did not identify Plaintiff as the person from the night in question in the manner represented in the affidavit. The State subsequently substituted Kinley Baker as the complaining witness after the statutory deadline for such substitution, without disclosing Fillis's contradicting statement to Plaintiff.

26. Plaintiff was arraigned on September 19, 2024 before Judge Lemoine. This is the accrual date for Plaintiff's false arrest claim under *Wallace v. Kato*, 549 U.S. 384 (2007).
27. Plaintiff has remained subject to pretrial supervision conditions, active warrants, and adverse legal proceedings continuously from September 19, 2024 to the date of this filing as a direct result of the unlawful arrest.

3.3. The May 10, 2025 Unlawful Home Entry

28. On or about May 10, 2025, Washington County Sheriff's Office deputies entered Plaintiff's residence without a warrant and without her consent.
29. The entry was purportedly authorized by a community supervision order of arrest under ORS 144.350, which requires only "reasonable grounds" – a standard lower than probable cause – and is directed at the supervised individual (Barry Washington), not at Plaintiff.
30. Plaintiff asked the officers to leave her home. After Plaintiff asserted her right to the privacy of her home, the officers remained. Any exigency arising after Plaintiff's assertion that the officers were not welcome was officer-created and does not justify warrantless entry. *Kentucky v. King*, 563 U.S. 452, 470 (2011).

31. The May 10, 2025 entry violated Plaintiff's rights under the Fourth Amendment to the United States Constitution and Article I, Section 9 of the Oregon Constitution.
32. This claim is independent of and does not require invalidation of any pending criminal prosecution. It is not subject to *Younger* abstention.

3.4. The Manufactured Warrant Chain

33. Following the May 10, 2025 home entry, Judge Thompson – the assigned judge in Plaintiff's pending criminal case 24CR49043 – communicated directly with the Washington County pretrial release office via email, directing the release office to investigate a possible violation of Plaintiff's release agreement based on alleged contact with co-defendant Barry Washington.
34. This communication was not filed in the court record of case 24CR49043. It is referenced in the release office's own internal email but was not disclosed to Plaintiff as a communication from the judge assigned to her pending case.
35. The release office transmitted Thompson's instruction to Sheila Clark (WCSO Probation and Parole supervisor), who relayed it to Molly McBride (supervising officer), who consulted Rambin's report – which was itself a summary of another officer's report of the May 10, 2025 arrest – and reported that Plaintiff's name had been “run” during the arrest, which she characterized as evidence of contact between Plaintiff and Washington.
36. A name appearing in a database check during a co-defendant's arrest is not “contact” between persons. The chain of inference – from Thompson's

unfiled email through Clark through McBride through Rambin's secondary report – does not constitute personal knowledge and does not establish the factual basis required for a violation finding.

37. Based on this hearsay chain, the release office submitted an affidavit to the court and a show cause hearing was initiated.
38. Notice of the show cause hearing was sent to an address Plaintiff had not used in more than ten years and to the Oregon Public Defense Commission in Salem – an entity that was listed as an administrative placeholder in Plaintiff's case file but was not her legal representative. WCSO had executed or attempted to execute the warrant for Barry Washington's arrest at Plaintiff's current address. The release office therefore had constructive and actual knowledge of Plaintiff's current address.
39. A warrant was issued at the show cause hearing on June 23, 2025, in case 24CR49043. Plaintiff received no notice of the hearing.

3.5. The Unauthorized Grand Jury and Void Indictment

40. On January 14, 2025, a grand jury returned an indictment against Plaintiff in case 24CR49043.
41. Washington County Circuit Court Trial Court Administrator Richard E. Moellmer responded to Plaintiff's public records request on March 3, 2026, certifying that "Washington County Presiding Judge Order No. 332, In the Matter of the Jury Terms of the Circuit Court for 2025, dated December 13, 2023, is the **only** responsive court jury record." (Emphasis added.)
42. In a separate response to Plaintiff's request for any order authorizing a

grand jury between January 1 and January 31, 2025, Moellmer certified: “There are **no** responsive court jury records titled ‘special session order, emergency order, or other administrative order.’” (Emphasis added.)

43. The immediately preceding Presiding Judge Order governing jury terms was PJO 325, which governed 2024 jury terms. PJO 332 governs 2025 jury terms. The specific term dates within PJO 332 for January 2025 are contained in the certified attachment to Moellmer’s response.
44. Moellmer’s certified responses, issued after consultation with OJD General Counsel, constitute the court’s own official records establishing that no special, emergency, or gap-bridging order authorizing a grand jury session existed for the January 1-31, 2025 period beyond the terms specified in PJO 332.
45. An indictment returned by a grand jury convened without valid court authority is void *ab initio*. All proceedings – including warrants, bail conditions, and continued prosecution – predicated on that indictment are similarly void.

3.6. The Contact Information Alteration and Systematic Notice Deprivation

46. On or about December 30, 2025, a Washington County Circuit Court clerk altered Plaintiff’s contact information in the court’s electronic case management system. This alteration caused court notices across multiple pending cases to be routed to a stale address that Plaintiff had not used in more than ten years.

47. The contact information alteration occurred on the same date that contempt/VRA proceedings were initiated against Plaintiff in case 25CN05790.
48. The simultaneous alteration of contact information and initiation of adverse proceedings on the same date is not consistent with administrative coincidence. The timing correlation establishes that the alteration was made with knowledge that it would prevent Plaintiff from receiving notice of the adverse proceedings, or with deliberate indifference to that consequence.
49. As a direct result of the notice deprivation, Plaintiff was found to have failed to appear at hearings she did not know existed, resulting in bench warrants, bail forfeiture, and security revocation – including revocation of a recognizance release in case 24CR27775, a case in which no bail had been posted.
50. Washington County Circuit Court TCA Moellmer is the designated records custodian. The alteration of Plaintiff’s contact information is a court records entry that falls within the court’s administrative functions.

3.7. The Removal of Almira Davis Without Service of Process

51. On September 6, 2025, at 5:40 PM, ODHS Supervisor Heather Kitto sent Plaintiff a text message stating that ODHS could release custody of Almira Davis to Plaintiff.
52. Nineteen minutes later, at 5:59 PM, the same supervisor retracted this decision, citing alleged statements by Almira about suicidal ideation. Almira Davis subsequently denied making any such statements during a monitored phone call with Plaintiff. ODHS terminated the monitored call immediately

after Almira denied making the statements.

53. At 7:01 PM, ODHS made the decision to place Almira in alternate out-of-home resource care. Plaintiff's uncle was present prior to this decision and was available as a family placement. ODHS did not document its consideration or rejection of this family placement option.
54. ODHS held a shelter hearing on September 8, 2025. At no time prior to or at the shelter hearing was Plaintiff served with a summons or a copy of the dependency petition as required by ORS 419B.815, which provides that a court "may establish jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition." The word "only" is an absolute statutory requirement.
55. Plaintiff timely filed a written special appearance on September 8, 2025 – the date of the shelter hearing, within ten days of the removal – objecting to referee jurisdiction, demanding appointment of counsel, and challenging the court's lack of jurisdiction due to failure of service.
56. A Washington County Juvenile Court clerk orally informed Plaintiff by telephone on the morning of the shelter hearing that Plaintiff was not permitted to file any documents in the case. Despite this instruction, Plaintiff filed her special appearance. The filing was subsequently discarded by the clerk without being entered in the court record and without any written notation of rejection identifying the statutory basis for non-acceptance.
57. A separate written motion to dismiss for lack of jurisdiction, citing ORS 419B.815, ORS 419B.839, and ORS 419B.848, was filed on October 14, 2025. The juvenile court denied it on the stated ground that the Oregon

Rules of Civil Procedure do not apply to juvenile dependency proceedings. The court did not address the ORS 419B statutory argument.

58. As of the date of this filing, Plaintiff has not been served with a summons or petition in case 25JU04261.

59. In May 2026, ODHS transmitted to Plaintiff, by **email**, an Ongoing Safety Plan (CF1149, effective May 6, 2026) containing conditions for Almira's return. ODHS simultaneously maintained in the juvenile proceedings that it had been unable to serve Plaintiff with the petition and summons. ODHS's use of email to transmit official, legally operative conditions for reunification while claiming that email was an unavailable or inadequate method for service of process is a direct contradiction that constitutes an admission that electronic service was available and feasible.

3.8. The May 2026 Safety Plan and Unconstitutional Surveillance Conditions

60. The ODHS Ongoing Safety Plan dated May 6, 2026, signed by Supervisor Skye Hopkins and Caseworker David Milne, imposes as a condition of Almira's return to Plaintiff's custody that Plaintiff "will need to allow ODHS regular and ongoing access to her home to assess safety. This will be both scheduled and unscheduled."

61. No court order authorizes ODHS to conduct warrantless unscheduled searches of Plaintiff's home. No judicial finding of exigency, probable cause, or consent has been made.

62. The requirement of pre-consenting to warrantless unscheduled govern-

ment entry as a condition of exercising a fundamental parental right violates the Fourth Amendment. *Camara v. Municipal Court*, 387 U.S. 523 (1967); *Calabretta v. Floyd*, 189 F.3d 808 (9th Cir. 1999).

63. ODHS has never made any allegation that Plaintiff is unfit, abusive, or neglectful. No such allegation appears in any document in the dependency proceedings. The Safety Plan’s characterization of Plaintiff’s refusal to consent to warrantless entry as a “barrier to reunification” criminalizes the exercise of a constitutional right.
64. The Safety Plan cites Plaintiff’s active criminal warrants – warrants that are themselves the product of the unlawful arrest and manufactured warrant chain described herein – as conditions bearing on Almira’s return. ODHS is thus using the fruits of the constitutional violations alleged in this complaint as independent bases for continued family separation.

3.9. Defendant Milne’s Documented Racial Animus

65. On or about May 2, 2026, during a recorded telephone call, Plaintiff informed Defendant Milne that her arrest originated from a racial misidentification – specifically, that she, a Black woman, had been misidentified as the suspect in a Target retail theft incident by a WCSO deputy.
66. Milne responded to this statement by expressing vocal displeasure and telling Plaintiff, in substance, that she was not going to “play that card” or words to that effect, and then terminated the call.
67. “Playing the race card” is a well-documented racial trope directed specifically at Black people who invoke race discrimination as an explanation for

adverse treatment. Its use by a government caseworker, in the exercise of official duties, in response to a Black mother's factually accurate description of racial misidentification in the criminal justice system that is directly affecting her custody of her child, is direct evidence of racial animus by a state actor.

68. Milne subsequently documented the terminated call as Plaintiff's "failure to engage" in the case, using Plaintiff's constitutionally protected expression – her invocation of racial misidentification – and his own retaliatory termination of the call as the basis for a negative case notation.
69. Defendant Faulkner, as Milne's supervisor, was informed of the call and ratified Milne's conduct by defending his termination of the call and criticizing Plaintiff's use of expletives – which occurred after Milne's racial dismissal and call termination – without addressing the substance of Milne's conduct.

4. CAUSES OF ACTION

4.1. Count I — 42 U.S.C. § 1983: Fourth Amendment — Unlawful Arrest (Against Rambin and Washington County)

70. Plaintiff incorporates all preceding paragraphs.
71. Deputy Rambin arrested Plaintiff without probable cause, based on an identification he conceded in his own supplemental report was unverified and possibly erroneous.
72. Rambin acted under color of state law. His conduct violated Plaintiff's

clearly established Fourth Amendment right to be free from arrest without probable cause.

73. Washington County is liable under *Monell* for its policy, practice, and custom of failing to investigate or discipline officers who submit probable cause affidavits based on unverified identification, as evidenced by WCSO's failure to act on DPSST complaint No. 2025-239CJ in the seven months following its receipt.
74. **Statute of Limitations Notice:** This claim accrued on September 19, 2024. Plaintiff files this complaint as a protective filing pursuant to *Wallace v. Kato* and simultaneously moves to stay this claim pending resolution of the criminal proceedings. The claim is preserved.

4.2. Count II — 42 U.S.C. § 1983: Fourth Amendment — Unlawful Home Entry (Against WCSO Officers and Washington County)

75. Plaintiff incorporates all preceding paragraphs.
76. The May 10, 2025 warrantless entry into Plaintiff's home, over her express objection, conducted pursuant to a community supervision order directed at a third party under the lower "reasonable grounds" standard of ORS 144.350, violated Plaintiff's Fourth Amendment rights.
77. Any exigency that arose after Plaintiff asserted her right to the privacy of her home was officer-created and does not justify the entry. *Kentucky v. King*, 563 U.S. 452, 470 (2011).
78. This claim is not subject to *Younger* abstention. It does not require the invalidation of any pending criminal prosecution. It arises from an inde-

pendent law enforcement action that predates the proceedings in which the resulting warrant was issued.

4.3. Count III — 42 U.S.C. § 1983: First Amendment Retaliation (Against Milne and Faulkner)

79. Plaintiff incorporates all preceding paragraphs.
80. Plaintiff's invocation, during a recorded call with Defendant Milne, of her racial misidentification as the basis for the criminal proceedings that are being used to justify continued family separation constitutes protected speech under the First Amendment. *Cohen v. California*, 403 U.S. 15 (1971).
81. Milne terminated the call in direct response to Plaintiff's protected speech, then documented the call as evidence of Plaintiff's failure to engage, using Plaintiff's protected speech and his own retaliatory conduct as the basis for a negative official record entry.
82. Faulkner ratified this retaliation by defending Milne's conduct without inquiry into his racial dismissal of Plaintiff's protected statements.
83. These actions would chill a person of ordinary firmness from exercising First Amendment rights.

4.4. Count IV — 42 U.S.C. § 1983: Fourteenth Amendment Due Process — Juvenile Proceedings (Against ODHS and Individual ODHS Defendants)

84. Plaintiff incorporates all preceding paragraphs.
85. Plaintiff has a fundamental constitutional right to the care, custody, and

control of her child. *Troxel v. Granville*, 530 U.S. 57 (2000).

86. ODHS removed Almira Davis from Plaintiff's custody and initiated dependency proceedings without serving Plaintiff with the summons and petition required by ORS 419B.815. The shelter hearing proceeded without jurisdiction over Plaintiff.
87. ODHS failed to make reasonable efforts to prevent removal as required by ORS 419B.192 and 42 U.S.C. § 671(a)(15). No documentation of safety planning, protective capacity assessment, or exhaustion of less restrictive alternatives was provided to Plaintiff.
88. ODHS failed to consider or document its rejection of a family placement option - Plaintiff's uncle - who was present prior to the removal decision.
89. ODHS is imposing unconstitutional surveillance conditions - warrantless unscheduled home entry - as a prerequisite to reunification with a child the agency has never alleged Plaintiff is unfit to parent.
90. ODHS simultaneously claimed it could not serve Plaintiff with process while transmitting official, legally operative conditions for reunification to Plaintiff by the same electronic means it claimed were unavailable for service.

**4.5. Count V — 42 U.S.C. § 1985(3): Civil Conspiracy to Deprive Rights
(Against All Individual Defendants)**

91. Plaintiff incorporates all preceding paragraphs.
92. Two or more of the Defendants conspired together for the purpose of depriving Plaintiff, a Black woman, of the equal protection of the laws and of

equal privileges and immunities under the laws, in violation of 42 U.S.C. § 1985(3).

93. The conspiracy is evidenced by the following coordinated overt acts, taken by multiple actors across multiple institutional lines:

- (a) Judge Thompson’s communication, outside the court record, to the pre-trial release office directing initiation of adverse proceedings against a defendant in a case pending before him;
- (b) The alteration of Plaintiff’s contact information in the court’s electronic case management system on December 30, 2025 – the same date the contempt/VRA proceedings were initiated – causing notices to be routed to a stale address;
- (c) DDA Stabler’s filing of a pleading in case 24CR27775 containing a material factual misrepresentation – that Plaintiff had “fired” two attorneys – directly contradicted by the court record Stabler possessed;
- (d) WCSO’s seven-month failure to investigate DPSST complaint No. 2025-239CJ following its receipt and assignment;
- (e) ODHS caseworker Milne’s racial dismissal of Plaintiff’s identification of racial misidentification as the basis for her prosecution, followed by documentation of protected speech as case-negative conduct;
- (f) The initiation of a contempt/VRA proceeding and the issuance of a \$25,000 bail-upon-arrest warrant on a case predicated on an unauthorized grand jury indictment;

(g) ODHS's use of warrants generated by the above conduct as independent bases for continued separation of Plaintiff from her child.

94. The class-based discriminatory animus motivating this conspiracy is established by: Milne's direct racial dismissal on a recorded call; Oregon DHS's documented use of a racially biased algorithmic tool during Plaintiff's first child removal; Oregon's documented 470-480% Black-to-statewide prison admission rate disparity; and the disparate treatment of Plaintiff - a Black mother against whom no allegation of unfitness exists - compared to her child's father, a non-Black man charged with assaulting the child, who has been accommodated as a cooperative placement.
95. Defendants committed overt acts in furtherance of the conspiracy as described above.
96. As a direct and proximate result of the conspiracy, Plaintiff has suffered and continues to suffer: deprivation of liberty through unconstitutional warrants; separation from her minor child; inability to secure employment; housing instability; denial of access to the courts; and severe emotional distress.

4.6. Count VI — 42 U.S.C. § 1986: Neglect to Prevent (Against Supervisory Defendants)

97. Plaintiff incorporates all preceding paragraphs.
98. Each supervisory Defendant - including the Washington County Presiding Judge, WCSO command staff, and ODHS supervisors including Faulkner - had knowledge of the conspiracy described in Count V, had the power to

prevent or aid in preventing its continuation, and neglected and refused to do so.

99. WCSO's seven-month non-response to DPSST complaint No. 2025-239CJ, in which DPSST identified WCSO as the investigating agency, constitutes documented neglect to prevent continued violation by Defendant Rabin.
100. Defendant Faulkner had direct knowledge of Milne's conduct on the May 2, 2026 recorded call and ratified that conduct without investigation or remediation.
101. This neglect caused Plaintiff additional injury beyond that caused by the underlying conspiracy.

4.7. Count VII — 42 U.S.C. § 1983: Monell — Municipal Liability (Against Washington County)

102. Plaintiff incorporates all preceding paragraphs.
103. Washington County has maintained policies, practices, and customs that caused the constitutional violations described herein, including:
 - (a) A practice of routing court notices to administrative placeholder representatives rather than unrepresented defendants, obscuring the unrepresented total from federal reporting requirements under the public defense crisis;
 - (b) A practice of failing to update defendant contact information notwithstanding direct agency knowledge of current address through concurrent enforcement activity;

- (c) A failure to train, supervise, and discipline WCSO deputies regarding the requirements for probable cause affidavits based on witness identification;
- (d) A failure to investigate documented officer misconduct following receipt of formal complaints, as demonstrated by WCSO's non-response to DPSST complaint No. 2025-239CJ;
- (e) Deliberate indifference to the racially disparate impact of these policies and practices, as documented by the Oregon Criminal Justice Commission and evidenced by seven decades of documented Black overrepresentation in Washington County's criminal justice system.

104. These policies and customs were the moving force behind the constitutional violations Plaintiff suffered. *Monell v. Department of Social Services*, 436 U.S. 658 (1978); *City of Canton v. Harris*, 489 U.S. 378 (1989).

5. DAMAGES

105. As a direct and proximate result of Defendants' conduct, Plaintiff has suffered:

- (a) Deprivation of liberty through unconstitutional arrest, pretrial supervision, and active warrants continuously from September 2024 to the present;
- (b) Separation from her minor child Almira Davis from September 2025 to the present;
- (c) Loss of employment opportunities due to active warrants;

- (d) Housing instability exacerbated by the use of contested warrants in civil eviction proceedings;
 - (e) Denial of access to court proceedings affecting her fundamental rights;
 - (f) Severe emotional distress, including diagnosed anxiety and depression causally related to the ongoing governmental conduct;
 - (g) Costs and expenses associated with pro se litigation across four concurrent court proceedings;
 - (h) Ongoing deprivation of the fundamental right to parent her child.
106. Plaintiff seeks compensatory damages, punitive damages against individual defendants, declaratory relief, injunctive relief regarding the unconstitutional surveillance conditions in the ODHS Safety Plan, and any further relief this Court deems just.

6. PRAYER FOR RELIEF

WHEREFORE, Plaintiff AshLe' Antoinette Penn respectfully requests that this Court:

1. **Declare** that the warrantless entry into Plaintiff's home on May 10, 2025 violated the Fourth Amendment;
2. **Declare** that ODHS's imposition of warrantless unscheduled home entry as a condition of reunification in the May 2026 Safety Plan violates the Fourth Amendment;
3. **Declare** that the removal of Almira Davis from Plaintiff's custody without

service of summons or petition violated Plaintiff's Fourteenth Amendment due process rights;

4. **Enjoin** ODHS from conditioning reunification on consent to warrantless entry absent a valid judicial order authorizing such entry;
5. **Award** compensatory damages against all Defendants jointly and severally in an amount to be determined at trial;
6. **Award** punitive damages against individual Defendants in their personal capacities;
7. **Stay** the damages claims arising from the pending criminal proceedings in case Nos. 24CR49043 and 24CR27775 pending final resolution of those proceedings, while maintaining all other claims for immediate adjudication;
8. **Award** attorney's fees and costs pursuant to 42 U.S.C. § 1988; and
9. **Grant** such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all claims so triable.

Respectfully submitted,

AshLe' Antoinette Penn

Plaintiff, Pro Se
Address

Phone

ail

Dated: May 18, 2026

CERTIFICATION: I certify that to the best of my knowledge, information, and belief, formed after reasonable inquiry, the allegations and factual contentions in this complaint have evidentiary support, and the claims are warranted by existing law. Fed. R. Civ. P. 11(b).